
Undertaking to the Australian Competition and Consumer Commission

**Given under section 87B of the Competition and Consumer
Act 2010 by SembSITA Australia Pty Ltd**

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1 Person giving the undertaking

- 1.1 This Undertaking is given to the Australian Competition and Consumer Commission (**ACCC**) by SembSITA Australia Pty Ltd (ACN 002 902 660) of 3 Rider Boulevard, Rhodes, New South Wales on behalf of itself and its subsidiaries (together referred to as **SITA**) under section 87B of the *Competition and Consumer Act 2010* (Cth) (**Act**).
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2 Background

The parties

- 2.1 SITA is a supplier of waste management services in Australia. SITA provides waste collection services to both commercial and industrial (**C&I**) customers and municipal councils around Australia. SITA's post collections business includes the ownership and operation of transfer stations, engineered landfills and alternative waste technology (**AWT**) facilities across Australia.
- 2.2 SITA owns and operates the Bedminster AWT facility in Cairns, which can accept and process putrescible waste from local councils as well as from a number of waste services firms supplying C&I collections services in the Cairns region of far northern Queensland.
- 2.3 SITA also has a long-term contractual arrangement to dispose of residual waste from the Bedminster AWT facility at the Mareeba landfill (which is owned and operated by the Tablelands Regional Council), as well as responsibility for the design and construction of the cells at the Mareeba landfill.
- 2.4 Thiess Services Pty Ltd (**Thiess**), a subsidiary of Leighton Holdings Limited, is a supplier of integrated water, energy, environmental, infrastructure and waste management services. Thiess proposes to sell its waste management services business.

The Proposed Acquisition

- 2.5 Thiess holds a 50% interest in the Springmount joint venture, an unincorporated joint venture with FGF Developments No. 1 Pty Ltd (**FGF Developments**) for the design, construction, ownership and operation of the Springmount Landfill near Mareeba in far northern Queensland (**Springmount JV**). The Springmount JV also operates the Woree Transfer Station, which is owned by D&M Moule Holdings Pty Ltd and leased to the Springmount JV. The Springmount Landfill accepts putrescible and inert waste from local councils as well as from waste services firms providing C&I collections. The Woree Transfer Station accepts both putrescible and inert waste from waste services firms supplying C&I collection services in the Cairns region.
- 2.6 On 3 April 2012 SITA lodged a confidential submission with the ACCC seeking informal merger clearance for the acquisition (either directly or through a related body corporate) of Thiess' waste management business (**Proposed Acquisition**).

The ACCC's review and competition concerns

- 2.7 The ACCC considered that, in the absence of this Undertaking, the Proposed Acquisition would result, or would be likely to result, in a substantial lessening of competition in relation to the supply of putrescible waste processing and disposal services in the Cairns region.

- 2.8 The ACCC considered that, post-acquisition and in the absence of this Undertaking, customers seeking putrescible waste processing and disposal services in the Cairns region would not have effective alternatives to the facilities that SITA would own, operate or otherwise have a significant interest in.

The Undertaking remedy

- 2.9 SITA has, without admission, offered this Undertaking under section 87B of the Act to divest its interest in the Springmount JV which it will acquire as a result of the Proposed Acquisition, to a purchaser approved by the ACCC.
- 2.10 The objective of this Undertaking is to address the ACCC's competition concerns that would otherwise arise as a result of the Proposed Acquisition. This Undertaking aims to achieve this objective by:
- (a) the maintenance of a viable, effective, stand-alone independent and long term competitor for the supply of putrescible waste processing and disposal services in the Cairns region;
 - (b) ensuring the Approved Purchaser has the necessary assets, rights and agreements to compete effectively with SITA;
 - (c) maintaining the economic viability, marketability, competitiveness and goodwill of the Divestiture Assets prior to divestiture;
 - (d) requiring SITA to hold its interest in the Springmount JV separate from SITA's other assets and businesses pending divestiture of the Divestiture Assets;
 - (e) requiring SITA to appoint an Approved Independent Representative to the Springmount JV Committee from the Completion Date to the Divestiture Date; and
 - (f) providing for the effective oversight of SITA's compliance with this Undertaking.

3 Commencement of Undertaking

Commencement

- 3.1 This Undertaking comes into effect when:
- (a) the Undertaking is executed by SITA; and
 - (b) the Undertaking so executed is accepted by the ACCC.

4 Cessation of ongoing obligations

Withdrawal

- 4.1 This Undertaking is taken to be withdrawn on the date the ACCC consents in writing to the withdrawal of this Undertaking in accordance with section 87B of the Act.

Revocation

- 4.2 The ACCC may, at any time, revoke its acceptance of this Undertaking if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

Waiver

- 4.3 The ACCC may, at any time, expressly waive in writing any of the obligations contained in this Undertaking or amend the date by which any such obligation is to be satisfied.

Completion

- 4.4 Clauses 1, 2, 3, 4, 9, 11, 12, 13, 14, 15, 16, 17 and Schedule 1 of this Undertaking survive completion of the obligations in clauses 5, 6, 7, 8, 10, Schedule 4 and Confidential Schedule 5.

5 Divestiture of the Divestiture Assets

Divestiture

- 5.1 SITA must, in accordance with this Undertaking, divest, or cause the divestiture of, the Divestiture Assets to the Approved Purchaser.
- 5.2 SITA must divest, or cause the divestiture of, the Divestiture Assets by:
- (a) the sale, assignment, transfer or licence of all of the Divestiture Assets to the Approved Purchaser, pursuant to the Approved Sale and Purchase Agreement and within the Initial Sale Period, otherwise clause 10 applies;
 - (b) the transfer or grant to the Approved Purchaser of all Consents pursuant to clauses 5.3, 5.4 and 5.5;
 - (c) the transfer of any Transferred Personnel required pursuant to clauses 5.6 and 5.7;
 - (d) compliance with any Approved Technical Assistance Agreement; and
 - (e) compliance with any Approved Interim Supply Agreement.

Consents

- 5.3 SITA must:
- (a) obtain or assist the Approved Purchaser to obtain as expeditiously as possible, all Consents as required before completion of the sale of the Divestiture Assets;
 - (b) comply with all requirements necessary to obtain any Consents, including by promptly providing all information necessary for the Consents to be given;
 - (c) act in good faith in its negotiations with the Approved Purchaser in relation to obtaining any Consents;
 - (d) promptly pay the costs and expenses of any third party reasonably incurred in providing the Consents; and
 - (e) enter an Approved Interim Supply Agreement with the Approved Purchaser in relation to any goods or services that are required for the operation of the Divestiture Assets which may be affected by any failure to gain a Consent.
- 5.4 If, seven Business Days before completion of the sale of the Divestiture Assets, the Approved Purchaser fails to obtain or is unable to obtain one or more Consents, then:
- (a) SITA must immediately provide to the ACCC, in writing details of the:

- (i) Consents that have not been obtained;
 - (ii) reasons why the Consents have not been obtained; and
 - (iii) information or material required to obtain the Consents.
- (b) SITA must continue to do everything in its power to satisfy clause 5.3 above as soon as possible after the Divestiture Date (and until such time as clause 5.3 is satisfied).
- 5.5 Even if SITA has complied with clauses 5.3 and 5.4, it remains a breach of this Undertaking if SITA is unable to effect the divestiture of the Divestiture Assets by reason of a failure to obtain Consents.

Transferred Personnel

- 5.6 At the option of the Approved Purchaser, SITA must transfer to the Approved Purchaser:
- (a) all employees; and
 - (b) all service providers under a contract for service;
- who are, in the view of the Approved Purchaser, necessary for the Approved Purchaser to maintain, operate or conduct effectively the business of the Springmount JV, including the Divestiture Assets, and who consent to the transfer of their employment or contract for service to the Approved Purchaser (***Transferred Personnel***).
- 5.7 When fulfilling its obligations under clause 5.6, SITA must:
- (a) not directly or indirectly discourage any Transferred Personnel from continuing or seeking employment with, or providing services to, the Approved Purchaser;
 - (b) release the Transferred Personnel from any obligations to provide services to SITA;
 - (c) release the Transferred Personnel from any non-compete or similar restraint of trade obligation, to the extent that such an obligation would otherwise prevent the person from performing his or her contemplated role in relation to the Springmount JV or Divestiture Assets; and
 - (d) not procure, promote or encourage the transfer of any of the Transferred Personnel from the Approved Purchaser to SITA for a period of six months after the Completion Date.

Approved Technical Assistance Agreement

- 5.8 At the option of the Approved Purchaser, SITA must provide Technical Assistance to the Approved Purchaser subject to the Technical Assistance being:
- (a) required by the Approved Purchaser in order to operate the Divestiture Assets;
 - (b) provided on a transitional basis for no more than 12 months;
 - (c) provided at cost and otherwise on arm's length terms; and
 - (d) approved by the ACCC pursuant to clause 6.4(a)(ii).

Approved Interim Supply Agreement

- 5.9 SITA must ensure the continuous supply of any goods or services which are the subject of any Approved Interim Supply Agreement for the period of the Approved Interim Supply Agreement.
- 5.10 SITA must ensure that any Approved Interim Supply Agreement:
- (a) is necessary to enable the establishment of the Approved Purchaser as a viable, effective, stand-alone independent and long-term competitor in the relevant market;
 - (b) lasts for a period of no longer than 12 months, which period is to be nominated by the Approved Purchaser;
 - (c) provides for the supply, re-supply or toll manufacturing of the included goods and services at cost price;
 - (d) is on such terms other than price which are no less favourable to the Approved Purchaser than arm's length terms; and
 - (e) is approved by the ACCC pursuant to clause 6.4(a)(iii).
- 5.11 For the avoidance of doubt, any option to renew the interim supply of goods or services exercised pursuant to the Approved Interim Supply Agreement can only be exercised subject to the requirements of clause 5.10 being satisfied and with prior ACCC approval.
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6 Sale of Divestiture Assets to the Approved Purchaser

Sale only to an Approved Purchaser

- 6.1 SITA must sell the Divestiture Assets only to an Approved Purchaser, and must not authorise the Approved Divestiture Agent to sell the Divestiture Assets to a purchaser other than an Approved Purchaser.

Proposed Purchaser Notice

- 6.2 To seek approval for a Proposed Purchaser in accordance with clause 6.4, SITA or the Approved Divestiture Agent must provide the ACCC with a Proposed Purchaser Notice in the form prescribed in Schedule 2 to this Undertaking.
- 6.3 The Proposed Purchaser Notice must be provided to the ACCC at least 20 Business Days prior to the end of the Initial Sale Period.

Approval of a Proposed Purchaser after the Commencement Date

- 6.4 After receiving a Proposed Purchaser Notice, the ACCC will decide whether to:
- (a) approve the person named in the Proposed Purchaser Notice as the Approved Purchaser which includes approving:
 - (i) the draft sale and purchase agreement attached to the Proposed Purchaser Notice;
 - (ii) any draft technical assistance agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clause 5.8; and

- (iii) any draft interim supply agreement attached to the Proposed Purchaser Notice, in accordance with the criteria in clause 5.10; or
 - (b) not approve the person named in the Proposed Purchaser Notice as the Approved Purchaser.
- 6.5 Without limiting the ACCC's discretion, in making the decision described in clause 6.4, the factors to which the ACCC may have regard include whether:
- (a) the draft sale and purchase agreement is consistent with this Undertaking and otherwise acceptable to the ACCC;
 - (b) the Proposed Purchaser will complete the transaction as contemplated by the draft sale and purchase agreement pursuant to which the Proposed Purchaser will acquire the Divestiture Assets;
 - (c) the Proposed Purchaser is independent of, and has no direct or indirect interest in, SITA;
 - (d) the Proposed Purchaser is of good financial standing;
 - (e) the Proposed Purchaser has an intention to maintain and operate the Springmount JV, pursuant to the JV Agreement, as a going concern;
 - (f) the Proposed Purchaser is able to conduct the business of the Springmount JV, including the Divestiture Assets, effectively; and
 - (g) the divestiture of the Divestiture Assets to the Proposed Purchaser will address any competition concerns of the ACCC, including in relation to the likely long-term viability and competitiveness of the Springmount JV.
- 6.6 Within 10 Business Days after receiving a notice for a Proposed Purchaser in the form prescribed in Schedule 2 to this Undertaking, the ACCC will notify SITA in writing of its decisions made pursuant to clause 6.4.
- 6.7 The ACCC may extend the period within which it will provide the notice described in clause 6.6 by notifying SITA in writing of the extension within 10 Business Days after receiving the Proposed Purchaser Notice.
- 6.8 Any extension of time by the ACCC pursuant to clause 6.7 extends the Initial Sale Period by the same length of time.
- 6.9 The ACCC may revoke an Approved Purchaser's status as the Approved Purchaser if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

7 Protection of the Divestiture Assets and Springmount JV

Protection of the Divestiture Assets

- 7.1 From the Completion Date, SITA must not sell or transfer its interest in, or any assets comprising part of, the Divestiture Assets (other than the sale of goods in the ordinary course of business) or make any Material Change, except in accordance with this Undertaking, or as required to allow completion of the Proposed Acquisition.

SITA's obligations in relation to the Divestiture Assets and Springmount JV

7.2 Without limiting this clause 7, SITA must, from the Completion Date until the Divestiture Date:

- (a) not be involved in the management and operation of the Springmount JV (except as expressly provided for in this Undertaking);
- (b) keep the Springmount JV operationally and financially separate from SITA unless this Undertaking otherwise provides;
- (c) minimise any risk of loss of competitive potential for the Springmount JV;
- (d) ensure that the books and records of the Springmount JV are kept separate from those of SITA, except to the extent necessary for SITA to comply with the legal and regulatory obligations set out in clause 7.8;
- (e) not directly or indirectly procure, promote or encourage the redeployment of personnel necessary for the operation of the Springmount JV as at the Completion Date to any other business operated by SITA;
- (f) continue to provide access to working capital and sources of credit for the Springmount JV in a manner which is consistent with the financing of the Springmount JV by Thiess before the Completion Date, including ensuring that the Springmount JV is able to acquire and pay for sufficient and timely delivery of all goods and services (including from third parties) which the Approved Representative considers are required by the Springmount JV;
- (g) provide and maintain administrative and technical support to the Springmount JV in a manner which is consistent with the operation of the Springmount JV before the Completion Date and in accordance with any plans established before the Completion Date;
- (h) except as otherwise approved by the Approved Independent Representative, ensure that any personnel (including contractors) concerned with the management or operation of the Springmount JV are not concerned with the management or operation of any aspect of SITA's businesses other than the business of the Springmount JV; and
- (i) use best endeavours to ensure that the Springmount JV:
 - (i) maintains the standards of promotion and sale of those products and services that are part of the Springmount JV as at the Commencement Date;
 - (ii) is managed and operated in the ordinary course of business by the JV Committee and the Approved Manager in such a way that preserves the economic viability, marketability, competitiveness, and goodwill of the Springmount JV as at the Completion Date;
 - (iii) continues existing Agreements with customers, suppliers or other third parties that were in place at the Completion Date;
 - (iv) renews or replaces upon expiry Material Contracts for the supply of goods or services, subject to any changes reasonably and legally required to ensure separation of the Divestiture Assets in accordance with the Approved Separation Plan which are notified to the ACCC in accordance with clause 7.4; and

- (v) has access to and use of the personnel required by the Approved Independent Representative and/or Approved Manager so that the Divestiture Assets can be maintained and the Springmount JV can operate as a viable going concern.

Direction to personnel

- 7.3 As soon as practicable after the Completion Date, SITA must direct its personnel, including directors, contractors, managers, officers, employees and agents, not to do anything inconsistent with SITA's obligations under this Undertaking.

Notification of separation changes

- 7.4 SITA must, within 10 Business Days after the Completion Date, notify the ACCC of any changes to the Divestiture Assets or the Springmount JV that SITA or the Approved Independent Representative intend to make to ensure the separation of the Divestiture Assets and the Springmount JV pursuant to clause 7.2.
- 7.5 Within five Business Days after receiving the notice described in clause 7.4, the ACCC will provide written notice of its decision to:
- (a) approve any changes to the Divestiture Assets or the Springmount JV that SITA or the Approved Independent Representative intend to make to ensure the separation of the Divestiture Assets pursuant to clause 7.2; or
 - (b) not approve any changes to the Divestiture Assets or the Springmount JV that SITA or the Approved Independent Representative intend to make to ensure the separation of the Divestiture Assets pursuant to clause 7.2.
- 7.6 SITA must implement any changes notified to SITA by the ACCC as being necessary to comply with clause 7.2, within five Business Days after being so notified or such other time frame as may be agreed by the ACCC in writing.

Confidential Information

- 7.7 Subject to clause 7.8, SITA must not, at any time from the Commencement Date, use or disclose any confidential information about the Divestiture Assets or the Springmount JV gained through:
- (a) ownership or management of the Divestiture Assets; or
 - (b) fulfilling any obligations pursuant to this Undertaking.
- 7.8 Clause 7.7 does not apply to information that:
- (a) SITA requires to comply with legal and regulatory obligations including obligations relating to taxation, accounting, financial reporting, stock exchange disclosure or environmental regulatory requirements; or
 - (b) SITA requires to carry out its obligations pursuant to this Undertaking,
- provided such information is only used for that purpose and is only disclosed to those officers, employees, contractors and advisers of the SITA who need to know the information to carry out the permitted purpose.

Ring Fenced Information

- 7.9 Any information requested by SITA from the Approved Independent Representative relating to the Divestiture Assets or the Springmount JV which it requires in order to comply with any obligation under this Undertaking, and which obligation is notified to the Approved Independent Representative, who may decide whether or not to provide access to that information, will be ring fenced information (***Ring Fenced Information***).
- 7.10 Subject to this Undertaking, SITA must, from the Completion Date, do everything within its power to prevent any Ring Fenced Information being communicated, disclosed to, used or accessed by any officer or employee of SITA other than the Approved Manager and an officer or employee who needs that information in order for SITA to comply with its obligations under this Undertaking.
- 7.11 SITA must procure that each person to whom Ring Fenced Information is communicated or disclosed, or by whom Ring Fenced Information is accessed or used, in accordance with this clause 7.11 observes the restrictions on the communication, disclosure, use and access of Ring Fenced Information in this Undertaking as if those restrictions were obligations of that person. In this regard, SITA must use best endeavours to:
- (a) prevent any breach of the obligation of confidentiality in relation to Ring Fenced Information by such a person;
 - (b) enforce the obligation of confidentiality in relation to the Ring Fenced Information by such a person; and
 - (c) prevent any further breaches of confidentiality in relation to the Ring Fenced Information by such a person.
- 7.12 SITA must maintain Ring Fenced Information on files and on systems that:
- (a) are separate from those used by personnel of SITA who are not entitled to use the Ring Fenced Information; and
 - (b) prohibit access to Ring Fenced Information by personnel of SITA who are not entitled to use the Ring Fenced Information.
- 7.13 SITA must advise the ACCC of any breach of the obligations of confidentiality in relation to Ring Fenced Information as soon as SITA becomes aware of the breach and, in any event, within two Business Days of SITA becoming aware of the breach.

8 Independent Management and Independent Representative on the JV Committee

Management of the Divestiture Assets and the Springmount JV

- 8.1 From the Completion Date until the Divestiture Date, SITA must:
- (a) not have any involvement in the management and operation of the Springmount JV (except as expressly provided for in this Undertaking); and
 - (b) use best endeavours to ensure that:
 - (i) the Springmount JV is managed by the JV Committee and the Approved Manager; and

- (ii) the Approved Manager reports to the Approved Independent Representative and the JV Committee and not to SITA.

Approved Manager of the Divestiture Assets for the Springmount JV

- 8.2 The ACCC has approved [insert name] as the Approved Manager and has approved the terms of his appointment proposed by SITA as the Approved Terms of Appointment.
- 8.3 SITA must:
 - (a) use best endeavours to procure that the JV Committee appoint [insert name] as the Approved Manager on the Approved Terms of Appointment by no later than the Completion Date; and
 - (b) forward to the ACCC a copy of the executed Approved Terms of Appointment within one Business Day of its execution.

Obligations and powers of the Approved Manager

- 8.4 SITA must procure that the terms of appointment of the Approved Manager include obligations on the Approved Manager to:
 - (a) maintain his or her independence from SITA, apart from appointment to the role of Approved Manager, including not forming any relationship of the types described in clause 2(c) of Schedule 3 to this Undertaking, with SITA for the period of his or her appointment;
 - (b) act in the best interests of the Springmount JV at all times;
 - (c) not use any confidential information gained through the management of the Divestiture Assets or the Springmount JV other than for performing his or her functions as the Approved Manager;
 - (d) manage the Divestiture Assets and Springmount JV in accordance with this Undertaking;
 - (e) report to the JV Committee and the Approved Independent Representative and not to SITA;
 - (f) co-operate with the requests of any Approved Divestiture Agent or Approved Independent Auditor appointed pursuant to this Undertaking;
 - (g) follow any direction given to him or her by the ACCC or the Approved Independent Representative in relation to the performance of his or her functions as Approved Manager pursuant to this Undertaking.

SITA's obligations in relation to the Approved Manager

- 8.5 SITA must use best endeavours to procure that the JV Committee appoints and maintains an Approved Manager to manage the Springmount JV from the Completion Date until the Divestiture Date in accordance with this Undertaking and the JV Agreement.
- 8.6 Without limiting its obligations in this Undertaking, SITA must:
 - (a) use best endeavours to ensure that the JV Committee complies with and enforces the Approved Terms of Appointment of the Approved Manager;

- (b) ensure that the Approved Manager is maintained and funded to carry out his or her functions, including by ensuring that:
 - (i) the Approved Manager is indemnified for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Manager of his or her functions as the Approved Manager except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Manager;
 - (ii) any external expertise, assistance or advice required by the Approved Manager to perform his or her functions as the Approved Manager is provided and paid for;
- (c) not interfere with the authority of the Approved Manager, or otherwise hinder, the Approved Manager's ability to carry out his or her obligations as the Approved Manager, including:
 - (i) accept (and direct its directors, contractors, managers, officers, employees and agents to accept) direction from the Approved Manager as to the control, management, financing and operations of the Divestiture Assets and the Springmount JV, and for the Springmount JV to meet all legal, corporate, financial, accounting, taxation, audit and regulatory obligations;
 - (ii) provide access to the facilities, sites or operations of the Divestiture Assets and the Springmount JV required by the Approved Manager;
 - (iii) provide to the Approved Manager any information or documents requested by the Approved Manager that he or she considers necessary for performing his or her role as the Approved Manager or for reporting to or otherwise advising the ACCC or the Approved Independent Representative; and
 - (iv) not request information or reports regarding the Divestiture Assets or the Springmount JV from the Approved Manager except through the Approved Independent Representative; and
 - (v) not appoint the Approved Manager, or have any Agreement with the Approved Manager, to utilise the Approved Manager's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Manager ceases to act in the role of the Approved Manager.

Resignation or termination of the Approved Manager

- 8.7 SITA must immediately notify the ACCC in the event that the Approved Manager resigns or otherwise stops acting as the Approved Manager before the Divestiture Date.
- 8.8 The ACCC may approve any proposal by, or alternatively may direct SITA to use its best endeavours to procure that the JV Committee terminate the appointment of the Approved Manager if in the ACCC's view the Approved Manager acts inconsistently with the provisions of this Undertaking.
- 8.9 If either clause 8.7, 8.8 or 8.14 applies, SITA must:
 - (a) not have any involvement in the recruitment and selection of a replacement Approved Manager;

- (b) use best endeavours to ensure that the Approved Independent Representative gives the ACCC a Proposed Manager Notice in the form prescribed in Schedule 3 to this Undertaking within 10 Business Days after the resignation or termination of the Approved Manager.

Approval of the replacement Proposed Manager

- 8.10 After receiving a Proposed Manager Notice pursuant to clause 8.9(b), the ACCC must decide whether to:
- (a) approve the appointment of the person named in the Proposed Manager Notice as the Approved Manager which includes approving the terms of appointment attached to the Proposed Manager Notice and ensuring that the terms of appointment contain an obligation to manage the Divestiture Assets in accordance with this Undertaking; or
 - (b) not approve the appointment of the person named in the Proposed Manager Notice as the Approved Manager.
- 8.11 Without limiting the ACCC's discretion, in making the decisions described in clause 8.8, the factors to which the ACCC may have regard include whether the:
- (a) person named in the Proposed Manager Notice or identified by the ACCC has the qualifications and experience necessary to manage the Springmount JV;
 - (b) terms of appointment are consistent with this Undertaking; and
 - (c) terms of appointment are otherwise acceptable to the ACCC.
- 8.12 Within 10 Business Days after receiving a Proposed Manager Notice, the ACCC must notify SITA and the Approved Independent Representative in writing of its decisions made pursuant to clause 8.10.
- 8.13 The ACCC may extend the period within which it will provide the notice described in clause 8.12 by notifying the Approved Independent Representative in writing of the extension within 10 Business Days after receiving the Proposed Manager Notice.
- 8.14 The ACCC may revoke an Approved Manager's status as the Approved Manager if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

Appointment of the replacement Approved Manager

- 8.15 After receiving a notice from the ACCC of its decisions pursuant to clause 8.10, SITA must:
- (a) use best endeavours to procure that the JV Committee appoint the replacement Approved Manager within two Business Days after the replacement Approved Manager is approved by the ACCC pursuant to clause 8.10 as the Approved Manager on the Approved Terms of Appointment; and
 - (b) forward to the ACCC a copy of the executed Approved Terms of Appointment within one Business Day of its execution.

Obligation to appoint an Approved Independent Representative

- 8.16 From the Completion Date until the Divestiture Date, SITA must:
- (a) appoint and maintain at least one Approved Independent Representative to the JV Committee; and

- (b) procure that no person appointed to the JV Committee by Thiess continues to be a member of the JV Committee unless that person is an Approved Independent Representative.

8.17 Without limiting its obligations in this Undertaking, SITA must:

- (a) comply with and enforce the Approved Terms of Appointment of the Approved Independent Representative;
- (b) maintain and fund the Approved Independent Representative to carry out his or her functions, including:
 - (i) indemnify the Approved Independent Representative for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Representative of his or her functions as the Approved Independent Representative except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Representative;
 - (ii) provide and pay for any external expertise, assistance or advice required by the Approved Independent Representative to perform his or her functions as the Approved Independent Representative;
- (c) not interfere with the authority of, or otherwise hinder, the Approved Independent Representative's ability to carry out his or her obligations as the Approved Independent Representative, including:
 - (i) accept (and direct its directors, contractors, managers, officers, employees and agents to accept) direction from the Approved Independent Representative as to the control, management, financing and operations of the Springmount JV, and for the Springmount JV to meet all legal, corporate, financial, accounting, taxation, audit and regulatory obligations;
 - (ii) provide access to the facilities, sites or operations of the Springmount JV required by the Approved Independent Representative;
 - (iii) provide to the Approved Independent Representative any information or documents requested by the Approved Independent Representative that he or she considers necessary for performing his or her role as a member of the JV Committee or for reporting to or otherwise advising the ACCC; and
 - (iv) not request information or reports regarding the Divestiture Assets or the Springmount JV except through the Approved Independent Representative.

Approval of the Proposed Independent Representative

8.18 At least 15 Business Days before the Completion Date, SITA must provide the ACCC with a notice for a Proposed Independent Representative in the form prescribed in Schedule 3 to this Undertaking (***Proposed Independent Representative Notice***).

8.19 After receiving a Proposed Independent Representative Notice, the ACCC will decide whether to:

- (a) approve the appointment of the person named in the Proposed Independent Representative Notice as the Approved Independent Representative which includes approving:

- (i) the terms of appointment attached to the Proposed Independent Representative Notice; and
 - (ii) the draft separation plan in relation to the Divestiture Assets attached to the Proposed Independent Representative Notice; or
 - (b) not approve the person named in the notice as the Approved Independent Representative and, at the ACCC's absolute discretion:
 - (i) identify and approve a person as the Approved Independent Representative;
 - (ii) approve the terms of appointment of the Approved Independent Representative;
 - (iii) approve a draft separation plan in relation to the Divestiture Assets; and
 - (iv) appoint the Approved Independent Representative on the Approved Terms of Appointment.
- 8.20 Without limiting the ACCC's discretion, in making the decisions described in clause 8.18, the factors to which the ACCC may have regard include whether:
- (a) the person named in the Proposed Independent Representative Notice or identified by the ACCC has the qualifications and experience necessary to oversee the management and operation of the Springmount JV, including the Divestiture Assets, as a member of the JV Committee;
 - (b) the person named in the Proposed Independent Representative Notice or identified by the ACCC is sufficiently independent of SITA;
 - (c) the terms of appointment and the draft separation plan are consistent with this Undertaking; and
 - (d) the terms of appointment and the draft separation plan are otherwise acceptable to the ACCC.
- 8.21 Within 10 Business Days after receiving a Proposed Independent Representative Notice, the ACCC must notify SITA in writing of its decisions made pursuant to clause 8.19.
- 8.22 The ACCC may extend the period within which it will provide the notice described in clause 8.21 by notifying SITA in writing of the extension within 10 Business Days after receiving the Proposed Independent Representative Notice.
- 8.23 The ACCC may revoke an Approved Independent Representative's status as the Approved Independent Representative if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

Appointment of the Approved Independent Representative

- 8.24 After receiving a notice from the ACCC of its decisions pursuant to clause 8.19 and by no later than the Completion Date (or if clause 8.29 applies, within two Business Days), SITA must:
- (a) appoint the person approved by the ACCC pursuant to clause 8.19(a) or clause 8.19(b)(i) as the Approved Independent Representative on the Approved Terms of Appointment approved by the ACCC pursuant to clause 8.19(a)(i) or clause 8.19(b)(ii); and

- (b) forward to the ACCC a copy of the executed Approved Terms of Appointment within one Business Day of its execution.

Obligations and powers of the Approved Independent Representative

8.25 SITA must procure that the terms of appointment of the Approved Independent Representative include obligations on the Approved Independent Representative to:

- (a) maintain his or her independence from SITA, apart from appointment to the role of Approved Independent Representative, including not form any relationship of the types described in clause 2(c) of Schedule 3 to this Undertaking with SITA for the period of his or her appointment;
- (b) act in the best interests of the Divestiture Assets at all times and not use any confidential information gained through his or her position as a member of the JV Committee other than for performing his or her functions as the Approved Independent Representative;
- (c) oversee the management and operation of the Springmount JV as a member of the JV Committee;
- (d) use his or her best endeavours to ensure that the JV Committee appoints and maintains an Approved Manager to manage the Springmount JV from the Completion Date until the Divestiture Date in accordance with this Undertaking;
- (e) implement the Approved Separation Plan;
- (f) co-operate with the requests of any Approved Divestiture Agent or Approved Independent Auditor appointed pursuant to this Undertaking.
- (g) provide the following reports directly to the ACCC:
 - (i) a monthly written report regarding the implementation of and any suggested changes to the Approved Separation Plan;
 - (ii) an immediate report of any issues that arise in relation to the implementation of the Approved Separation Plan or compliance with this Undertaking by any person named in this Undertaking; and
- (h) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Representative pursuant to this Undertaking.

8.26 SITA must procure that the terms of appointment of the Approved Independent Representative provide the Approved Independent Representative with the sole authority to:

- (a) oversee the management and operation of the Divestiture Assets as a member of the JV Committee until the Divestiture Date;
- (b) implement the Approved Separation Plan;
- (c) decide whether or not to provide access and the manner of such access in relation to competitively sensitive information relating to the Divestiture Assets or the Springmount JV requested by SITA which is not covered by the protocol in the Approved Separation Plan or the processes set out in clauses 7.9 to 7.13 relating to Ring Fenced Information;

- (d) as SITA's representative on the JV Committee, engage, redeploy or make redundant personnel employed in the Springmount JV as the JV Committee determines necessary; and
- (e) engage any external expertise, assistance or advice required by the Approved Independent Representative to perform his or her functions as the Approved Independent Representative.

Resignation or termination of the Approved Independent Representative

- 8.27 SITA must immediately notify the ACCC in the event that the Approved Independent Representative resigns or otherwise stops acting as the Approved Independent Representative before the Divestiture Date.
 - 8.28 The ACCC may approve any proposal by, or alternatively may direct, SITA to terminate the appointment of the Approved Independent Representative if in the ACCC's view the Approved Independent Representative acts inconsistently with the provisions of this Undertaking.
 - 8.29 If clause 8.23, 8.27, or 8.28 applies, SITA must provide the ACCC with a notice for a Proposed Independent Representative otherwise clause 8.19(b) applies.
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9 Independent Audit

Obligation to appoint an Approved Independent Auditor

- 9.1 SITA must appoint and maintain an Approved Independent Auditor to audit and report upon SITA's compliance with this Undertaking.
- 9.2 Without limiting its obligations in this Undertaking, SITA must:
 - (a) comply with and enforce the Approved Terms of Appointment for the Approved Independent Auditor;
 - (b) maintain and fund the Approved Independent Auditor to carry out his or her functions including:
 - (i) indemnify the Approved Independent Auditor for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Independent Auditor of his or her functions as the Approved Independent Auditor except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Independent Auditor;
 - (ii) provide and pay for any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor;
 - (c) not interfere with, or otherwise hinder, the Approved Independent Auditor's ability to carry out his or her functions as the Approved Independent Auditor, including:
 - (i) direct SITA personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 9;

- (ii) provide access to the facilities, sites or operations of the Divestiture Assets and SITA's other businesses as required by the Approved Independent Auditor;
- (iii) provide to the Approved Independent Auditor any information or documents requested by the Approved Independent Auditor that he or she considers necessary for carrying his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC;
- (iv) not request any information relating to the compliance audit from the Approved Independent Auditor without such a request having been approved by the ACCC;
- (v) not appoint the Approved Independent Auditor, or have any Agreement with the Approved Independent Auditor, to utilise the Approved Independent Auditor's services for anything other than compliance with this Undertaking until at least 12 months after the Approved Independent Auditor ceases to act in the role of the Approved Independent Auditor.

Approval of a Proposed Independent Auditor

- 9.3 At least 15 Business Days before the Completion Date, SITA must provide the ACCC with a notice for a Proposed Independent Auditor in the form prescribed in Schedule 3 to this Undertaking (***Proposed Independent Auditor Notice***).
- 9.4 After receiving a Proposed Independent Auditor Notice, the ACCC will decide whether to:
- (a) approve the appointment of the person named in the Proposed Independent Auditor Notice as the Approved Independent Auditor which includes approving:
 - (i) the terms of appointment attached to the Proposed Independent Auditor Notice; and
 - (ii) the draft audit plan attached to the Proposed Independent Auditor Notice; or
 - (b) not approve the person named in the notice as the Proposed Independent Auditor and, at the ACCC's absolute discretion:
 - (i) identify and approve a person as the Approved Independent Auditor;
 - (ii) approve the terms of appointment of the Approved Independent Auditor;
 - (iii) approve a draft audit plan; and
 - (iv) appoint the Approved Independent Auditor on the Approved Terms of Appointment.
- 9.5 Without limiting the ACCC's discretion, in making the decisions described in clause 9.4, the factors to which the ACCC may have regard include whether:
- (a) the person named in the Proposed Independent Auditor Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Independent Auditor;
 - (b) the person named in the Proposed Independent Auditor Notice or identified by the ACCC is sufficiently independent of SITA;

- (c) the terms of appointment and the draft audit plan are consistent with this Undertaking; and
 - (d) the terms of appointment and the draft audit plan are otherwise acceptable to the ACCC.
- 9.6 Within 10 Business Days after receiving a Proposed Independent Auditor Notice, the ACCC must notify SITA in writing of its decisions made pursuant to clause 9.4.
- 9.7 The ACCC may extend the period within which it will provide the notice described in clause 9.6 by notifying SITA in writing of the extension within 10 Business Days after receiving the notice.
- 9.8 The ACCC may revoke an Approved Independent Auditor's status as the Approved Independent Auditor if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

Appointment of the Approved Independent Auditor

- 9.9 After receiving notice from the ACCC of its decisions pursuant to clause 9.4 and by no later than the Completion Date, (or if clause 9.18 applies, within two Business Days), SITA must:
- (a) appoint the person approved by the ACCC pursuant to clause 9.4(a) or clause 9.4(b)(i) as the Approved Independent Auditor on the Approved Terms of Appointment approved by the ACCC pursuant to clause 9.4(a)(i) or clause 9.4(b)(ii); and
 - (b) forward to the ACCC a copy of the executed Approved Terms of Appointment within one Business Day of its execution.

Obligations and powers of the Approved Independent Auditor

- 9.10 SITA must procure that the Approved Terms of Appointment of the Approved Independent Auditor include obligations on the Approved Independent Auditor to:
- (a) maintain his or her independence from SITA, apart from appointment to the role of Approved Independent Auditor, including not form any relationship of the types described in clause 2(c) of Schedule 3 of this Undertaking with SITA for the period of his or her appointment;
 - (b) conduct compliance auditing according to the Approved Audit Plan;
 - (c) provide the following reports directly to the ACCC:
 - (i) a scheduled written Audit Report as described in clause 9.12; and
 - (ii) report immediately any issues that arise in relation to the performance of his or her functions as Approved Independent Auditor or in relation to compliance with this Undertaking by any person named in this Undertaking; and
 - (d) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Independent Auditor under this Undertaking.
- 9.11 SITA must procure that the Approved Terms of Appointment of the Approved Independent Auditor provide the Approved Independent Auditor with the authority to:
- (a) access the facilities, sites or operations Springmount JV in relation to the Divestiture Assets and SITA's other businesses as required by the Approved Independent Auditor;

- (b) access any information or documents that the Approved Independent Auditor considers necessary for carrying out his or her functions as the Approved Independent Auditor or for reporting to or otherwise advising the ACCC; and
- (c) engage any external expertise, assistance or advice required by the Approved Independent Auditor to perform his or her functions as the Approved Independent Auditor.

Compliance Audit

9.12 The Approved Independent Auditor must conduct an audit and prepare a detailed report (***Audit Report***) on:

- (a) SITA's compliance with this Undertaking;
- (b) all of the reasons for the conclusions reached in the Audit Report;
- (c) any qualifications made by the Approved Independent Auditor in forming his or her views;
- (d) any recommendations by the Approved Independent Auditor to improve:
 - (i) the Approved Audit Plan;
 - (ii) the integrity of the auditing process;
 - (iii) SITA's processes or reporting systems in relation to compliance with this Undertaking; and
 - (iv) SITA's compliance with this Undertaking
- (e) the implementation and outcome of any prior recommendations by the Approved Independent Auditor.

9.13 The Approved Independent Auditor is to provide an Audit Report to the ACCC and SITA at the following times:

- (a) within 10 Business Days after the Completion Date, at which time the Audit Report is to include the results of the initial audit and any recommended changes to the Approved Audit Plan (***Establishment Audit***);
- (b) every month from the date of the Establishment Audit until the first month after the Divestiture Date;
- (c) every three months after the date of provision of the last Audit Report pursuant to clause 9.13(b), until the ACCC confirms in writing to SITA that it is satisfied that the divestiture of the Divestiture Assets pursuant to clause 5 has been completed; and
- (d) a final report due three months after the last report provided pursuant to clause 9.13(c).

9.14 SITA must implement any recommendations of the Approved Independent Auditor made in the Audit Report, and notify the ACCC of the implementation of the recommendations, within 10 Business Days after receiving the Audit Report or after a period agreed with the ACCC.

9.15 SITA must comply with any direction of the ACCC in relation to matters arising from the Audit Report within 10 Business Days after being so directed (or such longer period as agreed with the ACCC).

Resignation or termination of the Approved Independent Auditor

- 9.16 SITA must immediately notify the ACCC in the event that the Approved Independent Auditor resigns or otherwise stops acting as the Approved Independent Auditor before the ACCC has provided the written confirmation pursuant to clause 4.1, 4.2 or clause 4.3.
- 9.17 The ACCC may approve any proposal by, or alternatively may direct, SITA to terminate the appointment of the Approved Independent Auditor if in the ACCC's view the Approved Independent Auditor acts inconsistently with the provisions of this Undertaking or the approved terms of his or her appointment.
- 9.18 If either clause 9.16 or clause 9.17 applies, SITA must provide the ACCC with a Proposed Independent Auditor Notice within 10 Business Days after the resignation or termination of the Approved Independent Auditor, otherwise clause 9.4(b) applies.
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10 Failure to divest the Divestiture Assets within the Initial Sale Period

Sale of the Unsold Assets

- 10.1 In the event that the sale of the Divestiture Assets to an Approved Purchaser is not completed by the end of the Initial Sale Period, the Divestiture Assets become Unsold Assets (**Unsold Assets**) and the provisions of clause 10 apply.

Obligation to appoint an Approved Divestiture Agent

- 10.2 From the end of the Initial Sale Period, SITA must appoint and maintain an Approved Divestiture Agent to effect the divestiture of the Unsold Assets.
- 10.3 Without limiting its obligations in this Undertaking, SITA must from the end of the Initial Sale Period:
- (a) comply with and enforce the Approved Terms of Appointment for the Approved Divestiture Agent;
 - (b) maintain and fund the Approved Divestiture Agent to carry out his or her functions; including:
 - (i) indemnify the Approved Divestiture Agent for any expenses, loss, claim or damage arising directly or indirectly from the performance by the Approved Divestiture Agent of his or her functions as the Approved Divestiture Agent except where such expenses, loss, claim or damage arises out of the gross negligence, fraud, misconduct or breach of duty by the Approved Divestiture Agent;
 - (ii) provide and pay for any external expertise, assistance or advice required by the Approved Divestiture Agent to perform his or her functions as the Approved Divestiture Agent;
 - (iii) pay such fees as are agreed between the Approved Divestiture Agent and SITA (but not fees contingent on the price to be obtained for the Unsold Assets);
 - (iv) if an agreement as to fees cannot be reached between the Approved Divestiture Agent and SITA within 15 Days before the end of the Initial Sale Period, SITA agrees to pay such fees as are directed by the ACCC;

- (c) not interfere with, or otherwise hinder, the Approved Divestiture Agent's ability to carry out his or her functions as the Approved Divestiture Agent, including:
 - (i) direct its personnel, including directors, contractors, managers, officers, employees and agents, to act in accordance with this clause 10;
 - (ii) provide access to the facilities, sites or operations of the Springmount JV in relation to the Divestiture Assets or SITA's other businesses as required by the Approved Divestiture Agent;
 - (iii) provide to the Approved Divestiture Agent any information, documents or other assistance requested by the Approved Divestiture Agent that he or she considers necessary for carrying out his or her functions as the Approved Divestiture Agent or for reporting to or otherwise advising the ACCC;
- (d) within three Business Days after receipt of a notice from the ACCC pursuant to clause 6.4, SITA must instruct the Approved Divestiture Agent to complete the sale of the Unsold Assets to the Approved Purchaser in accordance with the documents approved by the ACCC pursuant to clause 6.4; and
- (e) other than in accordance with clause 10.3(d) of this Undertaking, not instruct the Approved Divestiture Agent to sell the Unsold Assets.

Approval of a Proposed Divestiture Agent

- 10.4 At least 15 Business Days prior to the end of the Initial Sale Period, if the sale of the Divestiture Assets has not been completed, SITA must provide the ACCC with a notice for a Proposed Divestiture Agent in the form specified in Schedule 3 to this Undertaking (***Proposed Divestiture Agent Notice***).
- 10.5 After receiving a Proposed Divestiture Agent Notice, the ACCC will decide whether to:
 - (a) approve the appointment of the person named in the Proposed Divestiture Agent Notice as the Approved Divestiture Agent which includes approving:
 - (i) the terms of appointment attached to the Proposed Divestiture Agent Notice;
 - (ii) the draft business sale agreement attached to the Proposed Divestiture Agent Notice; and
 - (iii) the draft marketing and sale plan attached to the Proposed Divestiture Agent Notice; or
 - (b) not approve the person named in the Proposed Divestiture Agent Notice as the Approved Divestiture Agent and, at the ACCC's absolute discretion:
 - (i) identify and approve a person as the Approved Divestiture Agent;
 - (ii) approve the terms of appointment of the Approved Divestiture Agent; and
 - (iii) approve a draft business sale agreement and draft marketing and sale plan.
- 10.6 Without limiting the ACCC's discretion, in making the decisions described in clause 10.5, the factors to which the ACCC may have regard include whether:

- (a) the person named in Proposed Divestiture Agent Notice or identified by the ACCC has the qualifications and experience necessary to carry out the functions of the Approved Divestiture Agent;
 - (b) the person named in the Proposed Divestiture Agent Notice or identified by the ACCC is sufficiently independent of SITA;
 - (c) the terms of appointment, draft business sale agreement and draft marketing and sale plan are consistent with this Undertaking; and
 - (d) the terms of appointment, draft business sale agreement and draft marketing and sale plan are otherwise acceptable to the ACCC.
- 10.7 Within 10 Business Days after receiving a Proposed Divestiture Agent Notice, the ACCC must notify SITA in writing of its decisions made pursuant to clause 10.5.
- 10.8 The ACCC may extend the period within which it will make the decision described in clause 10.5 by notifying SITA in writing of the extension within 10 Business Days after receiving the Proposed Divestiture Agent Notice.
- 10.9 Any extension of time by the ACCC under clause 10.8 extends the Initial Sale Period by the same length of time.
- 10.10 The ACCC may revoke an Approved Divestiture Agent's status as the Approved Divestiture Agent if the ACCC becomes aware that any information provided to it was incorrect, inaccurate or misleading.

Appointment of the Approved Divestiture Agent

- 10.11 After receiving notice from the ACCC of its decisions pursuant to clause 10.5 and by no later than the end of the Initial Sale Period (or if clause 10.19 applies, within two Business Days), SITA must:
- (a) appoint the person approved by the ACCC pursuant to clause 10.5(a) or 10.5(b) as the Approved Divestiture Agent on the Approved Terms of Appointment approved by the ACCC under clause 10.5(a)(i) or 10.5(b)(ii); and
 - (b) forward to the ACCC a copy of the executed Approved Terms of Appointment within one Business Day of its execution.
- 10.12 As soon as practicable and within two Business Days after any notification by the ACCC under clause 10.5(b) SITA must submit a revised Proposed Divestiture Agent Notice which names the person identified by the ACCC as the Proposed Divestiture Agent and make any amendments necessary to the attachments required under Schedule 3 to this Undertaking;
- 10.13 If the Approved Divestiture Agent has not been appointed within 10 Business Days after the Divestiture Assets become Unsold Assets, then the ACCC at its absolute discretion may:
- (a) identify and approve a person at the ACCC's absolute discretion as the Approved Divestiture Agent;
 - (b) approve the terms of appointment of the Approved Divestiture Agent;
 - (c) approve the draft business sale agreement;
 - (d) approve the draft marketing and sale plan; and

- (e) appoint the Approved Divestiture Agent on the Approved Terms of Appointment.

Obligations and powers of the Approved Divestiture Agent

10.14 SITA must procure that the terms of appointment of the Approved Divestiture Agent include obligations on the Approved Divestiture Agent to:

- (a) maintain his or her independence from SITA, apart from appointment to the role of Approved Divestiture Agent, including not form any relationship of the types described in clause 2(c) of Schedule 3 to this Undertaking with SITA for the period of his or her appointment;
- (b) not use any confidential information gained through the divestiture of the Unsold Assets other than for performing his or her functions as Approved Divestiture Agent;
- (c) follow any Approved Marketing and Sale Plan;
- (d) divest the Unsold Assets only to the Approved Purchaser, approved by the ACCC in accordance with clause 6.4 of this Undertaking with no obligation imposed by SITA to achieve a sale at a minimum price;
- (e) must use his or her best endeavours to enter into a binding agreement for the sale of the Unsold Assets as quickly as possible using the Approved Business Sale Agreement;
- (f) co-operate with the requests of any Approved Independent Representative or Approved Independent Auditor appointed pursuant to this Undertaking;
- (g) every 30 Business Days following appointment of the Approved Divestiture Agent, provide written reports directly to the ACCC which include:
 - (i) information regarding the implementation of the Approved Business Sale Agreement and the Approved Marketing and Sale Plan including any previous changes approved by the ACCC;
 - (ii) information regarding any suggested changes to any Approved Marketing and Sale Plan including any previous changes approved by the ACCC;
 - (iii) an account and explanation of all disbursements, fees and charges incurred by the Approved Divestiture Agent in undertaking his or her duties by month and to the date of the report;
 - (iv) a schedule of agreed fees of the Approved Divestiture Agent (including the fees of any adviser appointed under clause 10.15(d));
 - (v) the efforts made to sell the Unsold Assets;
 - (vi) the identity of any advisers engaged;
 - (vii) the identity of any persons expressing interest in the Unsold Assets; and
 - (viii) any other information required by the ACCC.
- (h) Within 30 Business Days after the completion of the sale of the Unsold Assets, provide a written report directly to the ACCC which includes a final accounting of:
 - (i) any moneys derived from the divestiture of the Unsold Assets;

- (ii) all disbursements, fees and charges incurred by the Approved Divestiture Agent in fulfilling his or her duties; and
 - (iii) all agreed fees of the Approved Divestiture Agent (including the fees of any adviser appointed under clause 10.15(d);
 - (i) immediately inform the ACCC of:
 - (i) any issues that arise in relation to the implementation of the Approved Sale and Purchaser Agreement and any Approved Marketing and Sale Plan;
 - (ii) non-compliance with the Undertaking by any person named in the Undertaking;
 - (iii) any offers for the Unsold Assets;
 - (j) accept any offer for the Unsold Assets upon instruction from SITA given in accordance with clause 10.3(d); and
 - (k) follow any direction given to him or her by the ACCC in relation to the performance of his or her functions as Approved Divestiture Agent pursuant to this Undertaking.
- 10.15 SITA must procure that the terms of appointment of the Approved Divestiture Agent contain an irrevocable grant of power of attorney conferring all necessary power and authority on the Approved Divestiture Agent to:
- (a) negotiate with purchasers to divest the Unsold Assets on terms considered by the Approved Divestiture Agent in his or her sole discretion to be consistent with this Undertaking and the Approved Marketing and Sale Plan;
 - (b) execute any agreements with the Approved Purchaser required pursuant to clause 6;
 - (c) upon instruction pursuant to clause 10.3(d), complete the sale of the Unsold Assets to the Approved Purchaser in accordance with the Approved Business Sale Agreement; and
 - (d) engage any external expertise, assistance or advice required by the Approved Divestiture Agent to perform his or her functions as the Approved Divestiture Agent.
- 10.16 Any irrevocable power of attorney granted pursuant to clause 10.15 will end upon resignation or termination of the Approved Divestiture Agent in accordance with clause 10.10, 10.17 or clause 10.18 or in the event that the Unsold Assets are sold in accordance with this Undertaking.

Resignation or termination of the Approved Divestiture Agent

- 10.17 SITA must immediately notify the ACCC in the event that an Approved Divestiture Agent resigns or otherwise stops acting as an Approved Divestiture Agent before the completion of the sale of the Unsold Assets.
- 10.18 The ACCC may approve any proposal by, or alternatively may direct, SITA to terminate an Approved Divestiture Agent if in the ACCC's view the Approved Divestiture Agent acts inconsistently with the provisions of this Undertaking.
- 10.19 If either clause 10.10, 10.17 or clause 10.18 applies then SITA must provide a notice for a Proposed Divestiture Agent Notice in accordance with the form specified in Schedule 3 to this Undertaking within 10 Business Days.

11 Information

- 11.1 SITA must notify the ACCC and each Undertaking Appointment in writing of the proposed date of each of the following events at least five Business Days before each is proposed to occur:
- (a) the completion of the Proposed Acquisition; and
 - (b) the completion of the sale of the Divestiture Assets.
- 11.2 SITA must notify the ACCC and each Undertaking Appointment in writing of the occurrence of each of the following events within one Business Day after the date the event occurs:
- (a) the completion of the Proposed Acquisition; and
 - (b) the completion of the sale of the Divestiture Assets.
- 11.3 The ACCC may direct SITA in respect of its compliance with this Undertaking to, and SITA must:
- (a) furnish information to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce documents and materials to the ACCC within SITA's custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.
- 11.4 Any direction made by the ACCC under clause 11.3 will be notified to SITA, in accordance with clause 16.1.
- 11.5 In respect of SITA's compliance with this Undertaking or an Undertaking Appointment's compliance with its terms of appointment, the ACCC may request any Undertaking Appointment to:
- (a) furnish information to the ACCC in the time and in the form requested by the ACCC;
 - (b) produce documents and materials to the ACCC within the Undertaking Appointment's custody, power or control in the time and in the form requested by the ACCC; and/or
 - (c) attend the ACCC at a time and place appointed by the ACCC to answer any questions the ACCC (its Commissioners, its staff or its agents) may have.
- 11.6 SITA will use its best endeavours to ensure that an Undertaking Appointment complies with any request from the ACCC in accordance with clause 11.5.
- 11.7 Information furnished, documents and material produced or information given in response to any request or direction from the ACCC under this clause 11 may be used by the ACCC for any purpose consistent with the exercise of its statutory duties.
- 11.8 The ACCC may in its discretion to be exercised in good faith:
- (a) advise any Undertaking Appointment of any request made by it under this clause 11; and/or
 - (b) provide copies to any Undertaking Appointment of any information furnished, documents and material produced or information given to it under this clause 11.

- 11.9 Nothing in this clause 11 requires the provision of information or documents in respect of which SITA has a claim of legal professional or other privilege.
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12 Disclosure of the Undertaking

- 12.1 SITA and the ACCC agree that:
- (a) Schedule 5 will remain confidential until after the Divestiture Date.
 - (b) Schedule 6 will remain confidential at all times.
- 12.2 SITA acknowledges that the ACCC may provide each Undertaking Appointment with a copy of this Undertaking which includes unredacted versions of Confidential Schedules 5 and 6.
- 12.3 SITA acknowledges that the ACCC may, subject to clause 12.1:
- (a) make this Undertaking publicly available;
 - (b) publish this Undertaking on its Public Section 87B Undertakings Register; and
 - (c) from time to time publicly refer to this Undertaking.
- 12.4 Nothing in clause 12.1 or the confidential parts of this Undertaking referred to in clause 12.1 prevents the ACCC from disclosing such information as is:
- (a) required by law;
 - (b) permitted by s 155AAA of the Act;
 - (c) necessary for the purpose of enforcement action under section 87B of the Act; or
 - (d) necessary for the purpose of making such market inquiries as the ACCC thinks fit to assess the impact on competition arising in connection with this Undertaking.
- 12.5 Nothing in clause 12.1 or the confidential parts of this Undertaking referred to in clause 12.1 prevents the ACCC from using the information contained in this Undertaking for any purpose consistent with its statutory functions and powers.
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13 Obligation to procure

- 13.1 Where the performance of an obligation under this Undertaking requires a Related Body Corporate of SITA to take or refrain from taking some action, SITA will procure that Related Body Corporate to take or refrain from taking that action, as the case may be.
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14 No Derogation

- 14.1 This Undertaking does not prevent the ACCC from taking enforcement action at any time whether during or after the period of this Undertaking in respect of any breach by SITA of any term of the Undertaking.
- 14.2 Nothing in this Undertaking is intended to restrict the right of the ACCC to take action under the Act for penalties or other remedies in the event that SITA does not fully implement and/or perform its obligations under this Undertaking or in any other event where the ACCC decides to take action under the Act for penalties or other remedies.

15 Costs

- 15.1 SITA must pay all of its own costs incurred in relation to this Undertaking.
-

16 Notices

Giving Notices

- 16.1 Any notice or communication to the ACCC pursuant to this Undertaking must be sent to:

Email address: mergers@accc.gov.au,
Attention: Executive General Manager
Mergers and Adjudication Group

With an email copy sent to:

mergersucu@accc.gov.au
Director, Undertaking Compliance Unit
Merger Coordination and Strategy Branch

- 16.2 Any notice or communication to SITA pursuant to this Undertaking must be sent to:

Name: SembSITA Australia Pty Limited

Address: 3 Rider Boulevard
Rhodes NSW 2138

Email Address: Lindsay_kyle@sitacom.au

Attention: Lindsay Kyle, General Counsel

- 16.3 If sent by post, notices are taken to be received three days after posting (or seven days after posting if sent to or from a place outside Australia).

- 16.4 If sent by email, notices are taken to be received at the time shown in the email as the time the email was sent.

Change of contact details

- 16.5 SITA or the ACCC must notify the other party of a change to its contact details within three Business Days.

- 16.6 Any notice or communication will sent to the most recently advised contact details and subject to clauses 16.3 and 16.4, will be taken to be received.
-

17 Defined terms and interpretation

Definitions in the Dictionary

- 17.1 A term or expression starting with a capital letter:

- (a) which is defined in the Dictionary in Clause 1 of Schedule 1 (Dictionary), has the meaning given to it in the Dictionary; or
- (b) which is defined in the Corporations Act, but is not defined in the Dictionary, has the meaning given to it in the Corporations Act.

Interpretation

17.2 Clause 2 of Schedule 1 sets out rules of interpretation for this Undertaking.

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Executed as an Undertaking

Executed by SembSITA Australia
Pty Ltd (ACN 002 902 60) pursuant
to section 127(1) of the
Corporations Act 2001 by:

Signature of director

Name of director (print)

Date

Signature of a director/company
secretary [please delete as applicable]

Name of director/company secretary
(print) [please delete as applicable]

Date

Accepted by the Australian Competition and Consumer Commission pursuant to section 87B of the
Competition and Consumer Act 2010 on:

Date

And signed on behalf of the
Commission:

Chairman

Date

Schedule 1

Defined terms and interpretation

1 Dictionary

ACCC means the Australian Competition and Consumer Commission.

Act means the *Competition and Consumer Act 2010* (Cth).

Agreement means any contract arrangement or understanding including any contract arrangement or understanding to renew, amend, vary or extend any contract, arrangement or understanding.

Approved Audit Plan means the plan approved by the ACCC under clause 9.4(a)(ii) or clause 9.4(b)(iii), as amended from time to time by ACCC direction given under clause 9.10(d), by which the Approved Independent Auditor will audit and report upon compliance with the Undertaking.

Approved Business Sale Agreement means the standard form contract for the sale of the Unsold Assets which has been approved by the ACCC pursuant to clause 10.5(a)(ii) of this Undertaking.

Approved Independent Auditor means the person appointed under clause 9.4(a) or clause 9.4(b) of this Undertaking.

Approved Divestiture Agent means the person appointed under clause 10.5(a) or clause 10.5(b) of this Undertaking.

Approved Independent Representative means the person appointed under clause 8.5 of this Undertaking.

Approved Interim Supply Agreement means any agreement approved by the ACCC under clause 6.4(a)(iii) of this Undertaking and as amended from time to time under clause 5.11 of this Undertaking.

Approved Manager means the person appointed under clauses 8.2 or 8.15 of this Undertaking.

Approved Marketing and Sale Plan means the plan approved by the ACCC under clause 10.5(a)(iii) or clause 10.13(d) of this Undertaking, as amended from time to time by ACCC direction given under clause 10.14(k) of this Undertaking, by which the Approved Divestiture Agent will market and effect the sale of the Unsold Assets.

Approved Purchaser means the person approved by the ACCC under clause 6.4(a) of this Undertaking.

Approved Sale and Purchase Agreement means the contract approved by the ACCC under clause 6.4(a)(i) of this Undertaking by which the Approved Purchaser will acquire the Divestiture Assets from SITA.

Approved Separation Plan means the plan approved by the ACCC under clause 8.19(a)(ii) of this Undertaking, as amended from time to time by ACCC direction given under clause 8.25(h) of this Undertaking, by which the Approved Independent Representative will separate the Divestiture Assets from any business to be retained by SITA.

Approved Technical Assistance Agreement means any agreement approved by the ACCC pursuant to clause 6.4(a)(ii) of this Undertaking.

Approved Terms of Appointment means the terms of appointment of the Approved Independent Representative, Approved Manager, Approved Independent Auditor or Approved Divestiture Agent as applicable and as approved by the ACCC in accordance with clauses 8, 9 and 10 of this Undertaking.

Associated Entity has the meaning given by section 50AAA of the *Corporations Act 2001* (Cth).

Audit Report has the meaning in clause 9.12 of this Undertaking.

Business Day means a day other than a Saturday, Sunday or public holiday on which banks are open for business generally in the Australian Capital Territory.

Commencement Date means a date determined in accordance with clause 3.1.

Completion Date means the date on which the Proposed Acquisition is completed.

Consents means any Government Consents, or Third Party Consents (including environmental consents).

Corporations Act means the *Corporations Act 2001* (Cth).

Divestiture Assets means the assets described in Schedule 4 to this Undertaking.

Divestiture Date means the date on which divestiture of the Divestiture Assets is completed.

Entities Connected has the meaning given by section 64B of the *Corporations Act 2001* (Cth).

Establishment Audit has the meaning given in clause 9.13(a).

FGF Developments means FGF Developments No. 1 Pty Ltd.

Government Consents means any consents from any government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, including any licences, permits, consents, planning permissions, certifications, authorisations, approvals or contracts required for the conduct of the Divestiture Assets or the Springmount JV.

Initial Sale Period is defined in Confidential Schedule 5 to this Undertaking.

JV Agreement means the joint venture agreement in relation to the Springmount JV between FGF Developments and Thiess dated 11 February 1999, attached in Confidential Schedule 6]to this Undertaking.

JV Committee means the committee established under the JV Agreement.

Material Change means any change to the structure, attributes, extent or operations of the Springmount JV or product or service sold by the Springmount JV that may affect, or impact on, the competitiveness of the Divestiture Assets.

Material Contract means any contract, arrangement or understanding necessary for the operation of the Divestiture Assets or Springmount JV, whether or not in writing.

Plant and Equipment all fixed and loose plant, equipment, machinery, furniture, fixtures and fittings, computer hardware and software, vehicles, and all other tangible assets owned, leased, licensed or hired by the Springmount JV.

Proposed Acquisition is defined in clause 2.6 of this Undertaking.

Proposed Divestiture Agent means a person named in a notice for a Proposed Divestiture Agent in the form of Schedule 3 to this Undertaking.

Proposed Divestiture Agent Notice means a completed notice in the form of Schedule 3 to this Undertaking provided to the ACCC with all required attachments in relation to the Proposed Divestiture Agent.

Proposed Independent Auditor means a person named in a notice for a Proposed Independent Auditor in the form of Schedule 3 to this Undertaking.

Proposed Independent Auditor Notice means a completed notice in the form of Schedule 3 to this Undertaking provided to the ACCC with all required attachments in relation to the Proposed Independent Auditor.

Proposed Independent Representative means a person named in a notice for a Proposed Independent Representative in the form of Schedule 3 to this Undertaking.

Proposed Independent Representative Notice means a completed notice in the form of Schedule 3 to this Undertaking provided to the ACCC with all required attachments in relation to the Proposed Independent Representative.

Proposed Manager means a person named in a Proposed Manager Notice.

Proposed Manager Notice means a completed notice in the form specified in Schedule 3 to this Undertaking provided to the ACCC with all required attachments in relation to the Proposed Manager.

Proposed Purchaser means a person named in a notice for a Proposed Purchaser in the form of Schedule 2 to this Undertaking.

Proposed Purchaser Notice means a completed notice in the form of Schedule 2 to this Undertaking provided to the ACCC with all required attachments in relation to the Proposed Purchaser.

Public Section 87B Undertakings Register means the ACCC's public register of section 87B undertakings, available at www.accc.gov.au.

Related Entities has the meaning given by section 9 of the *Corporations Act 2001* (Cth).

Related Parties has the meaning given by section 228 of the *Corporations Act 2001* (Cth).

Ring Fenced Information means any information requested by SITA from the Approved Independent Representative under clause 7.9 relating to the Divestiture Assets or the Springmount JV which SITA requires in order to comply with any obligation under this Undertaking, and which obligation is notified to the Approved Independent Representative, who may decide whether or not to provide access to that information.

SITA means SembSITA Australia Pty Limited.

Springmount JV means the unincorporated 50-50 joint venture between Thiess and FGF Developments for the design, construction, ownership and operation of the Springmount Landfill and the operation of the Woree Transfer Station.

Springmount Landfill means the waste management facility located at Lot 13-14 Springmount Rd, Arriga (Walkamin), Dimbulah QLD 4872, including all of the land comprised in Lots 13 and 14, Plan SP103361, Parish of Culgar.

Thiess means Thiess Services Pty Ltd.

Technical Assistance includes advising on technical knowledge documentation, supporting the Approved Purchaser on acquiring specific equipment, providing staff with suitable experience and skills to assist and/or advice on technical issues, assisting in training for the Approved Purchaser's staff, and providing guidance on regulatory and legal aspects relating to the transfer of or application for licences.

Third Party Consents means any consents from any entity that is not a government agency required for the assignment, novation, sale, sub-licensing or transfer of any assets, licences, permits, approval or contracts required in relation to the Divestiture Assets for the conduct of the Springmount JV by the Approved Purchaser pursuant to the JV Agreement.

Transferred Personnel is defined in clause 5.6 of this Undertaking.

Undertaking is a reference to all provision of this document, including its schedules and as varied from time to time under section 87B of the Act.

Undertaking Appointment means the Approved Independent Representative, the Approved Manager, the Approved Independent Auditor or the Approved Divestiture Agent, as applicable.

Unsold Assets is defined in clause 10.1 of this Undertaking.

Woree Transfer Station means the transfer station located at Jackson Drive, Woree, QLD 4868.

2 Interpretation

In the interpretation of this Undertaking, the following provisions apply unless the context otherwise requires:

- (a) headings are inserted for convenience only and do not affect the interpretation of this Undertaking;
- (b) if the day on which any act, matter or thing is to be done under this Undertaking is not a Business Day, the act, matter or thing must be done on the next Business Day;
- (c) a reference in this Undertaking to any law, legislation or legislative provision includes any statutory modification, amendment or re-enactment, and any subordinate legislation or regulations issued under that legislation or legislative provision;
- (d) a reference in this Undertaking to any company includes its Related Bodies Corporate;
- (e) a reference in this Undertaking to any agreement or document is to that agreement or document as amended, novated, supplemented or replaced;
- (f) a reference to a clause, part, schedule or attachment is a reference to a clause, part, schedule or attachment of or to this Undertaking;
- (g) an expression importing a natural person includes any company, trust, partnership, joint venture, association, body corporate or governmental agency;
- (h) where a word or phrase is given a defined meaning, another part of speech or other grammatical form in respect of that word or phrase has a corresponding meaning;

- (i) a word which denotes the singular also denotes the plural, a word which denotes the plural also denotes the singular, and a reference to any gender also denotes the other genders;
- (j) a reference to the words 'such as,' 'including,' 'particularly' and similar expressions are to be construed without limitation;
- (k) a construction that would promote the purpose or object underlying the Undertaking (whether expressly stated or not) will be preferred to a construction that would not promote that purpose or object;
- (l) material not forming part of this Undertaking may be considered to:
 - (i) confirm the meaning of a clause is the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the competition concerns intended to be addressed by the Undertaking and the clause in question; or
 - (ii) determine the meaning of the clause when the ordinary meaning conveyed by the text of the clause, taking into account its context in the Undertaking and the purpose or object underlying the Undertaking, leads to a result that does not promote the purpose or object underlying the Undertaking;
- (m) in determining whether consideration should be given to any material in accordance with paragraph (m), or in considering any weight to be given to any such material, regard must be had, in addition to any other relevant matters, to:
 - (i) the effect that reliance on the ordinary meaning conveyed by the text of the clause would have (taking into account its context in the Undertaking and whether that meaning promotes the purpose or object of the Undertaking); and
 - (ii) the need to ensure that the result of the Undertaking is to completely address any ACCC competition concerns;
- (n) the ACCC may authorise the Mergers Review Committee, a member of the ACCC or a member of the ACCC staff, to exercise a decision making function under this Undertaking on its behalf and that authorisation may be subject to any conditions which the ACCC may impose;
- (o) in performing its obligations under this Undertaking, SITA will do everything reasonably within its power to ensure that its performance of those obligations is done in a manner which is consistent with promoting the purpose and object of this Undertaking.
- (p) a reference to:
 - (i) a thing (including, but not limited to, a chose in action or other right) includes a part of that thing;
 - (ii) a party includes its successors and permitted assigns; and
 - (iii) a monetary amount is in Australian dollars.

Schedule 2

Proposed Purchaser Notice Form

Please note in relation to information given on or in relation to this form, giving false or misleading information is a serious offence.

The completed form with requested documents attached may be provided to the ACCC using the following method:

Email

Subject line: Proposed Purchaser Notice – Undertaking given to the ACCC by SembSITA Australia Pty Ltd

Address: mergers@accc.gov.au

Attention: Executive General Manager - Mergers and Adjudication Group

With an email copy sent to:

Address: mergersucu@accc.gov.au

Attention: Director, Undertaking Compliance Unit Merger Coordination and Strategy Branch

1. In relation to the Proposed Purchaser, please provide the following information:

- (a) Name of the Proposed Purchaser:
- (b) Address:
- (c) Contact name:
- (d) Telephone number:
- (e) Other contact details:

2. Please attach a submission containing the following information to this form:

- (a) a description of the business carried on by the Proposed Purchaser including the locations in which the Proposed Purchaser carries on its business.
- (b) details of the Proposed Purchaser's experience in the relevant market/s.
- (c) the names of the [owner/s and the directors (delete any that do not apply)] of the Proposed Purchaser.
- (d) a section addressing the factors set out in clause 6.5 of this Undertaking, including any information adverse to the Proposed Purchaser, in the power, possession or control of SITA.
- (e) details of any of the following types of relationships between SITA and the Proposed Purchaser or confirmation that no such relationship exists whether within Australia or outside of Australia:
 - (i) SITA and the Proposed Purchaser are Associated Entities;

- (ii) SITA is an Entity Connected with the Proposed Purchaser;
- (iii) the Proposed Purchaser is an Entity Connected with SITA;
- (iv) SITA and the Proposed Purchaser are Related Entities;
- (v) SITA and the Proposed Purchaser are Related Parties;
- (vi) any Related Party, Related Entity or Entity Connected with SITA is a Related Party, Related Entity or Entity Connected with the Proposed Purchaser;
- (vii) SITA and the Proposed Purchaser have a contractual relationship or had one within the past three years, other than those attached to this form;
- (viii) the Proposed Purchaser is a supplier of SITA or has been in the past three years;
- (ix) SITA is a supplier of the Proposed Purchaser or has been in the past three years; and
- (x) any other relationship between SITA and the Proposed Purchaser that allows one to affect the business decisions of the other.

3. Please also attach to this form:

- (a) the finalised draft of the sale and purchase agreement for approval by the ACCC pursuant to clause 6.4(a)(i);
- (b) the finalised draft of any technical assistance agreement, for approval by the ACCC pursuant to clause 6.4(a)(ii);
- (c) the finalised draft of any interim supply agreement in relation to the Proposed Purchaser, for approval by the ACCC pursuant to clause 6.4(a)(iii); and
- (d) any documents required to support the information provided by SITA pursuant to this form.

Schedule 3

Undertaking Appointment Form

Proposed [please delete as applicable: Independent Auditor/ Divestiture Agent/Independent Representative/Manager] Form

This form sets out the information required by the ACCC in relation to proposed appointment of the following positions under the Undertaking:

- Manager
- Independent Representative;
- Independent Auditor; and
- Divestiture Agent;

(the *Undertaking Appointments*).

This form is to be used for each of the above appointments.

Please note in relation to information given in relation to this form, giving false or misleading information is a serious offence.

Method of Delivery to the ACCC

The completed Undertaking Appointment form, along with the additional requested information is to be provided to the ACCC with the subject line (*proposed* [only include relevant Undertaking Appointment i.e. Independent Auditor/Divestiture Agent/Independent Representative/Manager] Form – Undertaking given to the ACCC by SembSITA Australia Pty Ltd to the below email addresses:

1. mergers@acc.gov.au
Attention: Executive General Manager
Mergers and Adjudication Group
2. With an email copy sent to:
mergersucu@acc.gov.au
Attention: Director
Undertaking Compliance Unit
Merger Coordination and Strategy Branch

Information Required

The ACCC requires the following information in order to assess a proposed Independent Auditor, Divestiture Agent or Independent Representative (i.e. the relevant undertaking appointment).

1. Proposed Undertaking Appointment Details:
 - (a) the name of the Proposed Undertaking Appointment; and

- (b) the name of the proposed Undertaking Appointment's employer and contact details including:
 - (i) Address;
 - (ii) Contact name;
 - (iii) Telephone number;
 - (iv) Other contact details.
- 2. A submission containing the following information:
 - (a) details of [Undertaking Appointment's] qualifications and experience relevant to his or her proposed role pursuant to the Undertaking.
 - (b) the names of the [owner/s and the directors (delete any that do not apply)] of [the Undertaking Appointment's employer].
 - (c) details of any of the following types of relationships between SITA and [the Undertaking Appointment] or [the Undertaking Appointment's employer] or confirmation that no such relationship exists whether within Australia or outside of Australia:
 - (i) SITA and [the Undertaking Appointment's employer] are Associated Entities.
 - (ii) SITA is an Entity Connected with [the Undertaking appointment's employer].
 - (iii) [The Undertaking Appointment's employer] is an Entity Connected with SITA.
 - (iv) SITA and [the Undertaking Appointment's employer] are Related Entities.
 - (v) SITA and [the Undertaking Appointment's employer] are Related Parties.
 - (vi) any Related Party, Related Entity or Entity Connected with SITA is a Related Party, Related Entity or Entity Connected with [the Undertaking Appointment].
 - (vii) SITA and [the Undertaking Appointment] or [the Undertaking Appointment's employer] have a contractual relationship or had one within the past three years, other than those attached to this form.
 - (viii) [the Undertaking Appointment's employer] is a supplier of SITA or has been in the past three years.
 - (ix) SITA is a supplier of the [the Undertaking Appointment's employer] or has been in the past three years.
 - (x) any other relationship between SITA and [the Undertaking Appointment] or [the Undertaking Appointment's employer] that allows one to affect the business decisions of the other.
- 3. a document outlining the terms of appointment of the proposed Undertaking Appointment.

Specific Information required for Undertaking Appointments

The ACCC requires the below information in relation to the relevant Undertaking Appointment.

Proposed Manager

1. Written confirmation of the JV Committee's consent to appoint the person named in the Proposed Manager Notice as the Approved Manager of the Springmount JV.

Proposed Independent Auditor

1. The finalised draft audit plan for the Divestiture Assets, drafted by the Proposed Independent Auditor and outlining (to the extent possible) the Proposed Independent Auditor's plans in regard to the Establishment Audit and the Audit Report.

Proposed Divestiture Agent

1. The finalised draft business sale agreement drafted by the Proposed Divestiture Agent in consultation with SITA. The draft business sale agreement is to provide for the divestiture of the Unsold Assets.
2. The Proposed Divestiture Agent's draft marketing and sale plan for the Unsold Assets.

Proposed Independent Representative

1. The finalised draft separation plan for the Divestiture Assets detailing the measures and timing to be implemented by SITA and the Approved Independent Representative in order to fulfil SITA's and the Approved Independent Representative's obligations pursuant to the Undertaking. This plan is to be drafted by the Approved Independent Representative in consultation with SITA and the JV Committee to achieve the objectives of this Undertaking including:
 - (a) separation measures to ensure the Divestiture Assets of the Springmount JV are operated in a manner which is financially and operationally separate from SITA, including the;
 - (i) separation of the books and records of the Springmount JV from those of SITA;
 - (ii) severance of the Springmount JV's participation in any private shared information technology networks, to the extent possible without compromising the viability of the Springmount JV;
 - (iii) implementation of specific electronic, information and physical security measures to maintain the confidentiality of any competitively sensitive information of the Springmount JV; and
 - (iv) severance of arrangements to share personnel and plant between the Springmount JV and any businesses to be retained by SITA, to the extent possible without compromising the viability of the Springmount JV;
 - (b) details of contracts for the provision of goods or services to the Springmount JV which will expire after the completion of the sale of the Divestiture Assets to the Approved Purchaser and the actions which will be taken to ensure they are replaced on commercial terms favourable to the Springmount JV;

- (c) personnel planning to maintain appropriate personnel levels and ensure that the Springmount JV has access to all personnel necessary to maintain and operate the Divestiture Assets and the Springmount JV;
- (d) any Material Changes to the Divestiture Assets or the Springmount JV required in order to fulfil SITA's and the Approved Independent Representative's obligations pursuant to the Undertaking;
- (e) the cooperation required from the Approved Independent Representative with SITA in relation to the divestiture of the Divestiture Assets, including:
 - (xi) the method by which due diligence information, site visits and personnel interviews by and to prospective purchasers of the Divestiture Assets will be managed; and
 - (xii) the method by which the Approved Independent Representative and SITA will preserve the confidentiality of the Springmount JV's competitively sensitive information from SITA and its advisers throughout this process.
- (f) a protocol whereby the Approved Independent Representative can provide any information requested by SITA without disclosing the details of the Springmount JV's competitively sensitive information to SITA.

Schedule 4

Divestiture Assets

The Divestiture Assets means all of the legal and equitable interests in the assets of the Springmount JV acquired by SITA as part of, or as a result of, the Proposed Acquisition, including:

- (a) all rights in the Springmount Landfill;
- (b) all rights in the leasehold property consisting of the Woree Transfer Station;
- (c) all rights in the Plant and Equipment;
- (d) all raw materials, supplies, packaging and containers, products, marketing materials and other inventory of the Springmount JV;
- (e) all rights arising under or arising out of contracts, arrangements, undertakings, tenders, offers and orders entered into by or on behalf of the Springmount JV;
- (f) all original or copy books, ledgers and other financial records of the Springmount JV, records of sales and purchases, records of assets and liabilities, lists of customers of the Springmount JV and suppliers to the Springmount JV and all other materials, books, records, files, plans, correspondence, reports and documents relating substantially to the Springmount JV (excluding any records that SITA is required by law to retain or copies of records that SITA requires to retain to comply with legal and regulatory obligations including obligations relating to taxation, accounting, financial reporting, stock exchange disclosure or environmental regulatory requirements);
- (g) all trade debts and other rights to payment arising from the operation of the Springmount JV;
- (h) all business names and trade names under which the Springmount JV or any part of it is carried on; and
- (i) the goodwill of the Springmount JV.

Confidential Schedule 5

Confidential clauses

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Confidential Schedule 6

JV Agreement

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